

Court No. - 39

Case :- WRIT - C No. - 2681 of 2019

Petitioner :- S.N. Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Tiwari

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Sunil Kumar Tiwari, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondents no.2 and learned Standing Counsel for the respondent no. 1.

The petitioner in the writ petition is seeking quashing of the demand notice dated 4.12.2018. The petitioner disputed the electricity bill which has been issued to him from time to time and submits that the bill of Rs. 33,31,974/- is a highly inflated bill.

We, however find that the petitioner has already submitted an application on 14.1.2019 under Para 7.10 of the Electricity Supply Code, 2005 before the Consumer Grievance Redressal Forum, Kanpur which is registered as Case no. 1 of 2019 and he is already pursuing his remedy there. Therefore, parallel proceeding in the writ petition is not maintainable.

The writ petition is accordingly, **dismissed**.

We however, direct the Respondent no.3-Presiding Officer, Consumer Grievance Redressal Forum, Kanpur Mandal, Kanpur to decide the petitioner's application dated 14.01.2019, Case no. 1 of 2019, in accordance with law, expeditiously preferably within a period of two months from the date of receipt of a certified copy of this order in his office.

Order Date :- 24.1.2019

Kirti